

26SMCV03511 26SMCV03511

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

8, 2026

CASE NUMBER

26SMCV03511

MOTION

Demurrer

to Answer

MOVING PARTY

Plaintiff Slavi D. Slavov

OPPOSING PARTY

Defendant

Volkswagen Group of America, Inc.

MOTION

This case arises from allegations that Defendant delivered to Plaintiff a defective vehicle and failed to repair or replace it in violation of the Song-Beverly Act.

On June 26, 2026 Plaintiff Slavi D. Slavov ("Plaintiff") filed suit against Defendant Volkswagen Group of America Inc. ("Defendant" or "Volkswagen") alleging three causes of action under the Song-Beverly Act for (1) breach of express warranty; (2) breach of implied warranty; and (3) violation of section 1793.2, subdivision (b).

Defendant answered on July 30, 2025, asserting thirty-one (31) affirmative defenses.

Plaintiff now demurs to Affirmative Defenses 2-11, 13, 15-19, and 22-30 on the ground that Defendant failed to state facts sufficient to constitute a defense pursuant to Code of Civil procedure sections 430.20, subdivision (a) or 431.30, subdivision (b), and uncertainty pursuant to Code of Civil Procedure section 430.20, subdivision (b).

Plaintiff additionally demurs to Affirmative Defense 20 on the ground that it violates Code of Civil Procedure section 458.

Plaintiff additionally demurs to Affirmative Defenses 12, 14, and 21 on the ground that they are not legally cognizable affirmative defenses.

Finally, Plaintiff demurs to Affirmative Defense 31 on the ground that it is improper, uncertain, ambiguous, and unintelligible.

Defendant opposes the demurrer and Plaintiff replies.

ANALYSIS

A plaintiff may demur to an answer if: "(a) The answer does not state facts sufficient to constitute a defense. [¶] (b) The answer is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible. [¶] (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral."

(Code Civ. Proc., § 430.20.) “Code of Civil Procedure section 431.30, subdivision (b) provides that an answer to the complaint shall contain, in addition to a “general or specific denial” of the complaint’s allegations, a statement of any new matter constituting a defense. It has long been held that if the onus of proof is thrown upon the defendant, the matter to be proved by him is new matter.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 239 [cleaned up].)

As “[t]o the allegations of new matter, [n]umerous defenses were purportedly raised by defendants’ allegations of affirmative defense. Most of these allegations fail to state a defense even when liberally construed in defendants’ favor. Some are simply immaterial. For example, defendants allege as a conclusion that plaintiff’s claim is barred by laches, an equitable defense that has no application to the plaintiff’s legal claim. All of the allegations are proffered in the form of terse legal conclusions, rather than as facts averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint. The only affirmative defenses that are mentioned in the summary judgment proceedings, fraud in the inducement and failure of consideration, are not well pled, consisting of legal conclusions, and would not have survived a demurrer.” (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384 [cleaned up]; see also Quantification Settlement Agreement Cases (2011) 201 Cal.App.4th 758, 813 [“affirmative defenses cannot be pled as mere legal conclusions but must instead be alleged with as much factual detail as the allegations of a complaint”]; Department of Finance v. City of Merced (2019) 33 Cal.App.5th 286, 294, fn. 6 [boilerplate affirmative defenses without factual support are deficient].)

I.

Fail to State Facts Sufficient to Constitute
a Defense/New Matter

Plaintiff demurs to

Affirmative Defenses 2-11, 13, 15-19, and 22-30 on the grounds that Defendant failed to state facts and are uncertain.

a.

Second Affirmative Defense

The Song-Beverly Act requires that manufacturers repair or replace goods that do not conform to the applicable warranties. As such, the second affirmative defense that there is no defect or nonconformity merely negates an element of Plaintiff's claims and therefore does not constitute new matter. As such, the Court finds the second affirmative defense to be adequately stated.

b. Third
Affirmative Defense

The Song-Beverly Act requires the manufacture replace the goods or reimburse the buyer if the defects cannot be cured after "a reasonable number of attempts." (Civ. Code, § 1793.2, subd. (d)(1).) Thus, the third affirmative defense that Plaintiff did not allow Defendant a reasonable number of attempts to conform the subject vehicle to the express warranty is an element of Plaintiff's claim and does not constitute new matter. (See also CACI No. 3200 [fifth element of claim is that defendant failed to repair the vehicle in conformity with the warranty "after a reasonable number of opportunities[.]"]) As such, the Court finds the third affirmative defense to be adequately stated.

c.
Fourth and Fifth Affirmative Defenses

The Song-Beverly Act requires that the goods be serviced or repaired in conformity with the applicable warranties within 30 days unless a delay is "caused by conditions beyond the control of the manufacturer or its representatives[.]" (Civ. Code, § 1793.2, subd. (b); § 1793.22, subd. (b)(3).)

Notwithstanding that it is expressly listed in the statute, 30 days is the standard element of the claim and delay caused by conditions beyond the control of the manufacturer is an affirmative defense for which Defendant must adequately allege facts. Here, Defendant has not alleged any facts about what the delay was or what caused the delay.

Therefore, the Court sustains Plaintiff's demurrer to the fourth and fifth affirmative defenses.

d. Sixth

Affirmative Defense

Defendant's sixth affirmative defense alleges that the alleged defects/nonconformities were expressly excluded from and not included in the express written warranty. But Defendant does not provide a copy of the warranty nor does Defendant plead the essential terms of the warranty provision at issue.

Therefore, the Court sustains Plaintiff's demurrer to the sixth affirmative defense.

e.

Seventh through Tenth Affirmative Defenses

Defendant's seventh through tenth affirmative defenses allege that Plaintiff and/or others are responsible for the defects/nonconformities for altering and/or misusing the subject vehicle.

But Defendant has not adequately alleged any facts explaining the alternations/misuse.

Therefore, the Court sustains Plaintiff's demurrer to the sixth through tenth affirmative defenses.

f.

Eleventh Affirmative Defense

Defendant's eleventh affirmative defense alleges Plaintiff failed to comply with the statutory requirements to assert a cause of action under Song-Beverly. This is entirely unclear as to whether Defendant means Plaintiff has failed to adequately allege every element of the causes of action, whether Plaintiff has failed to satisfy some other threshold statutory requirement, or whether Plaintiff's conduct vis-à-vis the vehicle somehow precludes Plaintiff's claims.

As such, the Court sustains Plaintiff's demurrer to the eleventh affirmative defense on the ground of uncertainty.

g.

Thirteenth Affirmative Defense

Defendant's thirteenth affirmative defense alleges Defendant complied with its obligations under the Song-Beverly Act, but it is unclear whether Defendant alleges it adequately repaired the vehicle, timely replaced or refunded the vehicle.

As such, the Court sustains Plaintiff's demurrer to the thirteenth affirmative defense on the ground of uncertainty.

h.

Fifteenth Affirmative Defense

Defendant's fifteenth affirmative defense alleges Plaintiff is not in "vertical privity" with Defendant vis-à-vis the implied warranty claims because Plaintiff did not purchase the subject vehicle from Defendant or otherwise contract with Defendant.

But Defendant manufacturer's implied warranties flow by operation of law because it allegedly manufactured the vehicle in question. Thus, it is immaterial whether Plaintiff contracted directly with Defendant.

As such, the Court sustains Plaintiff's demurrer to the fifteenth affirmative defense.

i.

Sixteenth Affirmative Defense

Defendant's sixteenth affirmative defense alleges Plaintiff failed to mitigate damages. This is a new affirmative defense matter that Defendant failed to allege facts to support.

As such, the Court sustains Plaintiff's demurrer to the sixteenth affirmative defense.

j.

Seventeenth Affirmative Defense

Defendant's seventeenth affirmative defense is that any nonconformities or defects in the subject vehicle have since been repaired to conform to the applicable warranty. This

defense simply negates an element of Plaintiff's claim. As such, the Court finds the seventeenth affirmative defense to be adequately stated.

k.

Eighteenth Affirmative Defense

Defendant's eighteenth affirmative defense alleges Plaintiff's claims are barred by the doctrines of unclean hands, equitable estoppel, and/or laches. These defenses constitute new matter for which Defendant must adequately plead facts.

As such, the Court sustains Plaintiff's demurrer to the eighteenth affirmative defense.

l.

Nineteenth Affirmative Defense

The nineteenth affirmative defense alleges any and all implied warranties expired "by their own terms" or by operation of Civil Code section 1791.1.

As a threshold matter, an implied warranty does not have its "own terms." Moreover, Civil Code section 1791.1 provides that the duration of the implied warranties are coextensive in duration with the express warranty. The Complaint alleges Plaintiff acquired the vehicle on February 21, 2026 (Complaint ¶ 7) and that it contained a four-year warranty (Complaint ¶ 9.)

Thus, to the extent Defendant alleges the warranties were expired, such allegation constitutes new matter for which Defendant must supply facts.

Therefore, the Court sustains Plaintiff's demurrer to the nineteenth affirmative defense.

m.

Twenty-Second Affirmative Defense

The twenty-second affirmative defense alleges the Complaint does not name all necessary or indispensable persons pursuant to Code of Civil Procedure

section 389. This is a new matter for which Defendant must allege facts.

Therefore, the Court sustains Plaintiff's demurrer to the twenty-second affirmative defense.

n.

Twenty-Third Affirmative Defense

The twenty-third affirmative defense alleges Plaintiff failed to notify Defendant of the nonconformity as required by Civil Code section 1793.22, subdivisions (b)(1) and (2).

Notifying the Defendant about the nonconformity is an element of Plaintiff's claims and does not constitute a new matter. (See CACI No. 3200, element 4.) As such, the Court finds the twenty-third affirmative defense to be adequately stated.

o.

Twenty-Fourth Affirmative Defense

The twenty-fourth affirmative defense is that Defendant's acts or omissions were not willful, pursuant to Civil Code section 1794, subdivision (c). Civil Code section 1794, subdivision (c) provides that if the buyer establishes the failure to comply was willful, the judgment may include a civil penalty in addition to actual damages. Here, the Complaint alleges Defendant's conduct was willful and does not constitute a new matter. (See Complaint ¶ 36.)

As such, the Court finds the twenty-fourth defense to be adequately stated.

p.

Twenty-Fifth Affirmative Defense

The twenty-fifth affirmative defense alleges Plaintiff cannot recover a civil penalty because Plaintiff's claim is based upon a breach of an implied warranty, and Civil Code section 1794, subdivision (c) exempts claims premised on breaches of implied warranties.

However, the Complaint only seeks civil penalty damages in connection

with the first and third claims based on breaches of express warranties. Therefore, the Court sustains Plaintiff's demurrer to the twenty-fifth affirmative defense.

q.

Twenty-Sixth Affirmative Defense

Civil Code section 1794, subdivision (e)(3) provides that if the buyer does not serve upon the manufacturer a written notice requesting that the manufacturer comply with Section 1793.2, subdivision (d)(2), the manufacturer shall not be liable for a civil penalty.

The twenty-sixth affirmative defense alleges that Plaintiff failed to serve the requisite notice. The Court finds Defendant has adequately alleged the "ultimate facts" necessary to allege this affirmative defense.

r.

Twenty-Seventh through Thirtieth Affirmative Defenses

The twenty-seventh through thirtieth affirmative defenses alleges Plaintiff's claims pertaining to the subject vehicle are barred by the doctrines of claim preclusion, issue preclusion, res judicata, and final judgment via settlement in the case Emily Dack, et. al. v. Volkswagen Group of America, Inc., et. al, United States District Court, Western District of Missouri, Case No.: 4:20-cv-00615.

These affirmative defenses constitute new matter. Although Defendant has alleged the case that forms the basis of claim preclusion, issue preclusion, res judicata and/or final judgment, Defendant has not alleged all elements of claim preclusion, issue preclusion, res judicata, and/or final judgment.

Therefore, the Court sustains Plaintiff's demurrer to the twenty-seventh through thirtieth affirmative defenses.

II.

Code of Civil Procedure Section 458

Plaintiff argues that the twentieth affirmative defense violates Code of Civil Procedure section 458, which requires that any statute of limitations defense state the statutory section and subdivision relied upon.

Here, the affirmative defense alleges the claims alleged in the Complaint are barred by California Code of Civil Procedure sections 312, 337(a)-(d), 338(a) (d) (j), 339(1) (3), and 343 and/or California Commercial Code section 2725.

Thus, Defendant has adequately alleged a statute of limitations defense under Code of Civil Procedure section 458.

III.

Not

Legally Cognizable Affirmative Defenses

Plaintiff next argues affirmative defenses 12, 14, and 21 are not legally cognizable affirmative defenses.

The twelfth affirmative defense alleges Plaintiff failed to exhaust third-party dispute resolution process required by Civil Code section 1793.22, subd. (c).

Civil Code section 1793.22, subdivision (b) provides that it shall be presumed that a reasonable number of attempts have been made to conform the new motor vehicle to the express warranties if, within 18 months from delivery or 18,000 miles on the odometer, (1) the same nonconformity results in a condition likely to cause death or serious bodily injury, (2) the same nonconformity has been subject to repair four or more times and the buyer has at least once directly notified the manufacturer of the need to repair the nonconformity, or (3) the vehicle is out of service for repair more than 30 calendar days since delivery.

Civil Code section 1793.22, subdivision (c) provides:

If a qualified third-party dispute resolution process exists, and the buyer receives timely notification in writing of the availability of that qualified third-party dispute resolution process with a description of its operation and effect, the presumption in subdivision (b) may not be asserted by the buyer until after the buyer has initially resorted to the qualified third-party dispute resolution process as required in subdivision (d).

Thus, Defendant adequately alleges

that the “reasonable number of attempts” presumption shall not apply because Plaintiff failed to exhaust the third-party dispute resolution process.

Similarly, the fourteenth affirmative defense alleges Defendant is not liable for civil penalties under Civil Code section 1794, subdivision (e)(2) because a qualified third-party dispute resolution process exists which complies or substantially complies with Section 1793.22. Civil Code section 1794, subdivision (e)(2) provides that if the manufacture maintains a qualified third-party dispute resolution process which substantially complies with Section 1793.22, the manufacturer shall not be liable for any civil penalty.

Here, Defendant adequately alleges that Plaintiff’s claim for civil penalties fails due to Defendant’s maintenance of a qualified third-party dispute resolution process that substantially complies with Section 1793.22.

Defendant’s twenty-first affirmative defense alleges that the contract for purchase/lease of the subject vehicle includes an arbitration clause that binds Plaintiff’s claims herein to arbitration. The Court does not find any issue with this affirmative defense.

Therefore, the Court overrules Plaintiff’s demurrer to the 12, 14, and 21 affirmative defenses.

IV.

Thirty-First Affirmative Defense

Plaintiff argues the thirty-first affirmative defense is improper under Code of Civil Procedure section 430.20, subdivisions (a) and (b), and under *Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159 and *California State Automobile Association Inter-Insurance Bureau v. Superior Court* (1990) 50 Cal.3d 658, 663. But neither case involved a reservation of defenses. *Hulsey* merely found that the trial court had not abused its discretion in denying the defendant leave to amend at trial, more than three years after the answer was initially filed, to conform to the proof.

Therefore, the Court declines to sustain Plaintiff’s demurrer to

Defendant's reservation of rights to amend the answer to allege additional affirmative defenses, as stated in the thirty-first paragraph of the answer.

V.

Leave to Amend

The pleader has the burden of showing in what manner the pleading could be amended and how the amendment would change the legal effect of the pleading, i.e., state an affirmative defense. (See, e.g. *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) They must not only state the legal basis for the amendment, but also the factual allegations sufficient to state the affirmative defense. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, *supra*, 14 Cal.App.5th at p. 189.) Moreover, this burden is not satisfied by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative [pleading] deficient, [defendant] respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Defendant requests leave to amend, but does not articulate any facts that can be added to cure the deficiencies above. Notwithstanding, because the deficiencies are a failure to allege sufficient facts, they can be cured by pleading additional facts. Therefore, the Court grants Defendant's request for leave to amend.

CONCLUSION AND ORDER

For the foregoing reasons, the Court overrules Plaintiff's demurrer to affirmative defenses 2-3, 12, 14, 17, 20, 21, 23, 24, 26, and 31 but sustains with leave to amend Plaintiff's demurrer to affirmative defenses 4-11, 13, 15, 16, 18-19, 22, 25, and 27-30.

Further, the Court orders Defendant to file and serve an amended answer in conformity with the ruling on or before September 28, 2026.

Further, the Court will enter the proposed Order lodged on August 11, 2026 in conformity with the ruling.

Plaintiff shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: September 8, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court